

Smt. Sona Devi @ Son Wati vs The State on 28 July, 2011

IN THE COURT OF SHRI SANJEEV KUMAR SINGH :
ADMINISTRATIVE CIVIL JUDGE (CENTRAL) : DELHI

Petition No.: 53/2003
Unique ID No: 02401C019189

In the matter of:-

Smt. Sona Devi @ Son Wati,
W/o Late Prem Singh,
R/o House No. 138, Railway Riadm
Attar Pura, Hapur,
District-Ghaziabad,
Uttar Pradesh.

2 nd Address :-

Adarsh Nagar Colony,
Modi Nagar Road,
Hapur, District-Ghaziabad,
Uttar Pradesh

....Petitioner

Versus

The State

.....Respondents.

Date of Institution : 17.01.2003
Date of order when reserved : 08.07.2011
Date of order when announced : 28.07.2011

Petition No. 53/03
J U D G M E N T:

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This is a succession petition preferred by petitioner namely Smt. Sona Devi @ Son Wati seeking succession certificate qua the debts and securities of deceased Prem Singh, who expired on 29.05.2002 at Delhi.

2 After filing of this petition, notice of filing of this petition was given to the general public by way of publication in the newspaper 'Hindustan' dated 20.10.2003, but none has appeared from general public to oppose or contest the present petition. 3 It is pertinent to mention here that objector Kamlesh Kumari has also filed a separate petition bearing No. 136/2003 for the grant of Succession Certificate qua the debts and securities of deceased Prem Singh. Vide order dated 11.09.2007, both petition have been clubbed and petition bearing No. 53/2003 was treated as main petition. 4 The present petition has been filed by the petitioner Smt. Sona Devi @ Sonwati for the grant of succession certificate qua the debts and securities of her deceased husband Prem Singh. In the

present petition, Sh. Anil Kumar who is stated to be the son of the deceased has filed his no objection to the grant of succession certificate in favour of the petitioner. The main contention of the petitioner is that petitioner Smt. Sona Devi @ Sonwati is the only legally wedded wife of the deceased Prem Singh. On the other hand, objector Smt. Kamlesh Kumari is also claiming herself to be the legally wedded wife of the deceased and has filed objections to the petition filed by the petitioner Smt. Sona Devi @ Sonwati. The objector Kamlesh Kumari has vehemently denied that petitioner is the legally wedded wife of the deceased and Sh. Anil Kumar is the son of the deceased Prem Singh. Petitioner has filed reply to the objection filed by the respondent Kamlesh Kumari. It is submitted in her reply to the objection that she is the only legally wedded wife of the deceased Prem Singh as she had taken maintenance under Section 125 Cr.P.C. being real wife till the death of the deceased and no divorce took place between the petitioner and the deceased Prem Singh till his death and also submitted that Kamlesh Kumari is not the legally wedded wife of the deceased Prem Singh and she was only keep of Prem Singh It is further submitted in her reply to the objections that no legal divorce took place between the petitioner and the deceased, hence no second marriage of the deceased with any lady will be considered as legal marriage and nobody can become legally wedded wife of the deceased as per Hindu Marriage Act.

5 To prove her contentions, the petitioner got examined herself as PW□. In her affidavit, she has stated on oath that she was married to the deceased Prem Singh according to Hindu rites and ceremonies on 01.05.1963. It is further submitted on oath that a son namely Anil Kumar was born out of the said wedlock. In the year 1969, deceased developed connections with one Kamla, daughter of Sh. Hukam Chand and started ill treating the petitioner as a result of which, the petitioner was turned out along with her son in the year 1970 when the child was only four days old and petitioner remained with her parents at Village□Milk Chakkarpur, P.S. Murad Nagar, Tehsil□Ghaziabad, District□Ghaziabad, U.P. On 22.09.1975, petitioner filed an application under Section 125 Cr.P.C. for maintenance. The certified copy of the said petition is Ex. PW□/1. The said petition was contested by deceased Prem Singh and thereafter, in that petition, Prem Singh admitted his marriage and showed his willingness to keep the petitioner with him. The certified copy of the written statement is Ex. PW□/2. In the said proceedings, the parties filed an application for compromise duly signed by both the parties. The certified copy of the compromise application is Ex. PW□/3. She has placed on record the certified copy of the order and proceedings, by which the maintenance was fixed as Rs. 175/□per month. The same is Ex. PW□/4. It is further submitted that deceased Prem Singh was employed with the Department of Publication under the Ministry of Urban Development, New Delhi and Late Prem Singh had nominated the petitioner as his wife on 17.03.1966 to receive the amount of General Provident Fund in the event of his death. The deceased Prem Singh had also nominated his son, Sh. Anil Kumar for receiving the amount of D.C.R.G. It is further submitted that deceased Prem Singh was residing as tenant in the property of Smt. Kamlesh Kumari (objector in the present case) and objector took undue advantage of her intimacy with the deceased Prem Singh and during their relationship as landlord and tenant, the said objector got service record of Sh. Prem Singh manipulated. It is further submitted that deceased Prem Singh had been sending money orders to the petitioner till his death and acknowledged two letters out of which, a later dated 13.01.1993 which is Ex. PW□/5 and the photocopies of the money order receipts are Ex. PW□/6 to Ex. PW□/8. The deceased was Hindu by religion and could not marry any other lady during the lifetime of the petitioner. Prem Singh never obtained divorce from the

petitioner from any Court of law. There is no question of any Panchayat verdict regarding the marriage of petitioner and Prem Singh and no such dispute was ever referred to any Panchayat. Even said verdicts under the Hindu Marriage Act are unknown to law. It is further submitted that petitioner has not signed or given thumb impression on any declaration. Petitioner also brought the original ration card, copy of the same is Ex. PW□/9. Schedule Cast Certificate of Sh. Anil Kumar is Ex. PW□/10 and domicile certificate is Ex. PW□/11. 6 In cross□examination, petitioner/PW□ deposed that at the time of her marriage with deceased Prem Singh, she was residing at Village Budana, Hapur, District□Ghaziabad and petitioner remained in the house of Prem Singh for about 2□2 ½ years. Thereafter, she started living with her parents at Village Milk Chakkarpur. She denied the suggestion that thereafter she never lived with Prem Singh at matrimonial house. She deposed that child was delivered by her in her matrimonial house. It is admitted that deceased Prem Singh got employment in Delhi after about 2□2½ years after the marriage with the petitioner and deceased Prem Singh started living at Delhi since he joined the service but he used to come to the village. Petitioner stated that she did not know that whether Prem Singh married objector Kamlesh Kumari during that period and out of this wedlock, three children namely Seema, Mukesh and Meenakshi were born. She has denied the suggestion that deceased and petitioner agreed that petitioner would live separately from Prem Singh. She has denied the suggestion that any compromise was arrived between her as the deceased in Hapur Court and again deposed that a compromise was arrived in compliance of which Prem Singh agreed to pay monthly maintenance. She has further stated that she did not know whether Prem Singh lived with Kamlesh Kumari as a husband when he joined service at Delhi till his death. She also denied the suggestion that Prem Singh was ill before his death in May, 2002. She has also stated in her cross□examination that she came to know after his death that deceased was admitted in hospital and died there and she never went to the hospital to see deceased Prem Singh. She also stated that no Panchayat was held during litigation with deceased Prem Singh. She also denied the suggestion that as per customs and usages in her Biradari, Caste and Creed, the marriages between the parties and divorce among them are held in the Panchayat and the decision of the Panchayat is acceptable in our Biradari and nobody challenges the same. She also denied the suggestion that she had divorced Prem Singh and as such, she did not live with him for the last many years. She also denied the suggestion that she was not the wife of deceased Prem Singh. She stated that she did not live and co□habitat with Prem Singh as wife during the last about 30 years. She denied the suggestion that objector Kamlesh Kumari is the legally wedded wife of Prem Singh and she is entitled to the succession to the debts and securities of deceased Prem Singh.

7 Petitioner has also got examined one more witness Sh. Brahm Singh as PW□2 to prove her version. PW□2 Brahm Singh, who is stated to be the brother in law of the petitioner Smt. Sona Devi @ Sonawati. He has stated on oath that petitioner Sona Devi @ Sonawati was married with the deceased Prem Singh on 01.05.1963 according to Hindu Rites and ceremonies in his presence. He deposed that a son namely Anil was born from the wedlock of the deceased with the petitioner Smt. Sona Devi @ Sonawati. He has stated that petitioner Smt. Sona Devi @ Sonwati is the legally wedded wife of the deceased Sh. Prem Singh and deceased Prem Singh never taken divorce from the petitioner as per his knowledge. He deposed that due to some family disputes the petitioner left the matrimonial house and come to her native village Milk Chakkarpur, PS Murad Nagar, Tehsil Ghaziabad (UP) at her parents' house in the year 1970. He has stated that after the death of her

parents she came to his house and since then petitioner is residing there with him and his family members. He has also stated on oath that petitioner filed a maintenance petition against Prem Singh in the year 1975 and thereafter the said matter was compromised and the Hon'ble Court passed a maintenance order on 21.10.1976 and fixed a sum of Rs.175/- per month in favour of the petitioner. He has further stated that petitioner received the maintenance through money orders till 2000. He has stated that deceased Prem Singh was working with the Department of Publication under the Ministry of Urban Development, New Delhi. He has also stated on oath that deceased Prem Singh was expired on 29.05.2002.

In his cross examination, PW-2 Brahm Singh has stated that marriage between Sona Devi with deceased Prem Singh was solemnised at Milak Chakkarpur, Murad Nagar, Distt. Ghaziabad (UP). He has stated that he did not remember the name of any person including any relative who attended this marriage besides the family members of deceased Prem Singh. 70-80 Baraties attended the marriage. He deposed stated that he did not know what was the cause of the disputes between Sona Devi and Prem Singh after their marriage. He has admitted in his cross-examination that after 1970 Sona Devi never went to the house of Prem Singh. He has also stated that mother of petitioner died about 25 years back and her father died about 20 years back. He has stated that petitioner came to his house and started living there on account of education of her son. He has further stated in his cross-examination that he was married to elder sister of the petitioner Sona Devi @ Sonwati about 8 years prior to her alleged marriage with Prem Singh. He has denied the suggestion that Sona Devi used to live their house after marriage with her elder sister. He has stated that deceased Prem Singh joined service in Delhi in 1963 and further stated that since then deceased Prem Singh was residing in Delhi but he was visiting his village every week till the year 1969. He has denied that no Panchayat was conducted regarding disputes between deceased and petitioner Sona Devi and no Panchyat was held on 30.09.1972 at Village Milak Chakkarpur and there is custom and usage in their society that divorce take place before Panchayat and which is valid and accepted by all.

8 Objector Kamlesh Kumari got examined herself as RW-1. On affidavit she deposed that deceased Prem Singh was working in Delhi and was residing in Delhi. She deposed that deceased was married with her on 03.03.1975 and out of this wedlock between the objector and the deceased, four children were born namely Seema on 07.07.1976, who was married on 09.05.2002 and the Kanyadan was performed by Late Prem Singh being father, son namely Mukesh, who was born on 23.11.1978 and one Rajesh was born on 07.07.1982, who expired after three years of his birth, daughter Meenakshi, who was born on 01.02.1987 and the copies of the birth certificates are Ex. RW-1/A-1, A-2 and the copies of School Certificates are Ex. RW-1/B-1, Ex. RW-1/B-3, the copies of the Election I cards are Ex. RW-1/C-1, C-2, the copies of Voters' list is Ex. RW-1/D. She deposed that deceased Prem Singh had given the details of his family in his office showing Kamlesh Kumari as his wife and Seema, Meenakshi and Mukesh as his children. She has further stated that identity card was issued to the deceased from his office in which the photograph of deceased Prem Singh with his family and also the details of his family have been shown and these are Ex. RW-1/E-3 and Ex. RW-1/E-2 and the copy of ration card is Ex. RW-1/F. She further deposed that through out the period since 1975, deceased lived with the objector Kamlesh Kumari and their children in Delhi till his death in 2002. She deposed that during this period, Late Prem Singh availed Leave Travel Concessions number of occasions from his office for himself, the copies of the letters/certificates and receipts in this regard

are Mark RW□/H. She deposed on oath that deceased Prem Singh remained ill for about 8 years prior to his death and his condition became serious in the year 2002 and deceased was treated at Safdarjung Hospital and was also admitted there where he died on 29.05.2002. During the illness of Late Prem Singh, he was looked after by her and her family members and his medical expenses were also borne by the objector till his death. She deposed that an application alongwith medicine bills was sent to the office of Late Prem Singh on 15.07.2002, the copies of the application alongwith other documents and medical bills are Mark RW□/J. She has stated on oath that petitioner Sona Devi or Sonwati never lived with Late Prem Singh during his life time and neither visited the residence of Late Prem Singh at any time nor she visited him during his long period of illness at his residence or when he was admitted in the hospital. She deposed that neither Sona Devi or Sonwati nor her alleged child took part in the last rites of Late Prem Singh. She has stated that only she and her children who performed the last rites of deceased Prem Singh.

9 Objector Kamlesh Kumari has been cross□examined at length by ld. counsel for the petitioner Sona Devi. In her cross□examination, she has stated that deceased came to her house first time in the year 1975. She has denied the suggestion that deceased Prem Singh came to her house as a tenant. She has also denied the suggestion that no marriage took place between her and deceased at any point of time and also denied that no ceremony regarding any marriage between her and deceased Prem Singh ever took place. She has also stated on oath that she came to know for the first time that the deceased Prem Singh was already married only after his death and the said fact came to her knowledge from the department of the deceased Prem Singh as she has applied for the Provident Fund, Pension etc. but they told to the objector that some other woman has also applied for the same. She has stated that except the documents and photographs filed on record, she has no other documentary proof that she was married with deceased Prem Singh. She deposed that she did not know whether in the year 1966, the deceased Prem Singh had made Smt. Sona Devi as his nominee in the provident fund. She deposed that she came to know first time from the office of the deceased Prem Singh that the deceased Prem Singh had a son namely Anil Kumar from his previous marriage. She also deposed that she did not know whether deceased Prem Singh was paying maintenance to the petitioner Smt. Sona Devi and she also did not know that maintenance order was passed by the Court in favour of the petitioner and she also did not know whether the petitioner is still the wife of deceased Prem Singh. She has denied the suggestion that she is not entitled for any death benefits of the deceased and also denied that petitioner Sona Devi @ Sonwati is entitled for the after death benefits of the deceased Prem Singh being his wife. She also denied the suggestion that she took advantage of deceased Prem Singh being her tenant in the premises and manipulated documents in her favour showing herself to be his wife. She has also denied the suggestion that no 'Saptpadi' took place between her and the deceased Prem Singh and deceased Prem Singh was residing with her in the house in which he was a tenant. She has also stated that she has not filed any document or receipt etc. which could show that she was residing with the deceased Prem Singh in which, he was tenant. She has also denied the suggestion that the said documents which have been filed by her objector are manipulated by her with a view to wrongly show herself to be the wife of the deceased Prem Singh.

10 The objector has also got examined one witness namely Sh. Shyam Lal who is stated to be the brother of the deceased Prem Singh. In affidavit, Shyam Lal has stated that objector Kamlesh

Kumari was married with the deceased in the year 1975 and he was brought up by both deceased and objector Kamlesh Kumari since his childhood in their family and they were like parents to him. Out of the wedlock of deceased Prem Singh and objector Kamlesh Kumari, two daughters namely Seema and Meenakshi and two sons namely Mukesh and Rajesh were born. Rajesh died after three years of his birth. He has further stated that Kamlesh Kumari and Prem Singh were living throughout like husband and wife till the death of Prem Singh on 29.05.2002 when he died at Safdarjung Hospital. He has stated that Prem Singh remained ill for about 8 years before his death and Kamlesh Kumari was attending deceased Prem Singh being his devoted wife. He deposed that objector and her children performed the last rites of deceased Prem Singh. He deposed that Prem Singh had given the details of his family in his office showing Kamlesh Kumari as his wife and Seema, Meenakshi and Mukesh as his children. He has stated that he got married on 12.03.1986 and all the marriage ceremonies were performed by deceased Prem Singh and Kamlesh Kumari being his elder brother and Bhabhi respectively. He deposed that Sona Devi @ Sonwati never lived with Prem Singh during his lifetime and she neither visited the residence of Prem Singh at any time nor she visited him during his long period of illness at his residence or when he was admitted in the hospital. He has also stated that neither Sona Devi @ Sonwati nor her alleged children took part in the last rites of deceased Prem Singh. In his cross-examination, he has admitted that deceased Prem Singh was his elder brother. He has stated that he has no knowledge as to whether deceased Prem Singh married with the petitioner Sona Devi @ Sonwati and that a son namely Anil Kumar was born out of their marriage. He deposed that deceased Prem Singh told him that petitioner Sona Devi @ Sonwati had married him and a son born out of his wedlock. Again said, he was not told about the birth of son. He deposed that the deceased might have been sending maintenance by money order to Smt. Sona Devi but he had no knowledge about the same. He has denied the suggestion that he is making false statement that he knew everything about the deceased Prem Singh. He has also denied the suggestion that he is making the statement in collusion with the objector Kamlesh Kumari with a view to cause loss to petitioner Smt. Sona Devi @ Sonwati as he has enmity with her. He has also denied the suggestion that Smt. Sona Devi @ Sonwati is entitled for the after death benefits of the deceased Prem Singh being his legally wedded wife. He has denied the suggestion that at no point of time, any marriage took place or performed between deceased Prem Singh and Smt. Kamlesh. He has also denied the suggestion that deceased Prem Singh and objector Kamlesh had no relationship as husband and wife and also denied that deceased Prem Singh and objector Kamlesh Kumari did not attend his marriage on 12.03.1986 and also denied the suggestion that the deceased Prem Singh and objector Kamlesh Kumari never lived together as husband and wife.

11 I have heard the counsel for the parties and perused the record.

12 It may be mentioned here that succession petitions are to be decided summarily. Sec. 373 of the Indian Succession Act provides that a succession petition is to be decided in a summary manner and even if court cannot decide the right to the certificate without determining questions of law or fact which may seem to be too complicated and difficult for determination in a summary proceeding, the Court may nevertheless grant a certificate to the applicant if he appears to be the person having prima facie the best title thereto. Thus U/s 373 of Indian Succession Act, only prima facie case is to be seen and other questions of law and fact which may be complicated are to be decided in regular

civil court.

In the case of Madhvi Amma Bhawani Amma and others, Appellants Vs. Kunjikutty Pillai Meenakshi Pillai and others, Respondents. AIR 2000 Supreme Court 2301 = 2000 AIR SCW 2432 it was held that "subsec. (3) of S. 373 of Succession Act which deals with procedure for grant of certificate reveals two things, first adjudication for grant of certificate is summary proceedings and secondly if the question of law and fact are intricate or difficult, it could still grant the said certificate based on applicants prima facie title. In other words the grant of certificate under it is only a determination of prima facie title. This as a necessary corollary confirms that it is not a final decision between the parties. So, it cannot be construed that mere grant of such certificate or a decision in such proceeding would constitute to be a decision on an issue finally decided between the parties. If that be so the principle of res judicata cannot be made applicable."

13 Ld. Counsel for the petitioner argued that petitioner Sona Devi had filed an application 125 Cr.P.C. (PW□/1) and deceased filed his written statement in which he had admitted that he was married with petitioner on 01.05.1963 and after marriage a son namely Anil Kumar was born out of the said wed lock. He further argued that matter was compromised and deceased agree to pay Rs.175/□as maintenance to the petitioner Sona Devi and objector Kamlesh has admitted in her evidence that she was married with deceased on 03.03.1975. Therefore, it is clear that petitioner Sona Devi legally wedded wife of deceased Prem Singh and Anil is son of deceased Prem Singh.

14 Ld. Counsel for the respondent argued that objector, Kamlesh Kumari is the legally wedded wife of the deceased and out of this wedlock four children namely Seema, Meenakshi, Mukesh and Rajesh were born but Rajesh expired when she was three years only and objector has placed on record copies of birth certificates and copies of School Leaving Certificate which shows that Seema, Meenakshi and Mukesh are daughters and son of deceased Prem Singh. He further relied upon VIDYADHARI VS. SUKHRANA BAI, 2008, AIR (SC) 1420.

15 After hearing arguments at length from both the sides, I have given my thoughtful consideration to the facts and circumstances of the case.

16 Let us see whether petitioner Sona Devi or objector Kamlesh Kumari has been able to prove prima facie status of legally wedded wife of the deceased Prem Singh.

17 In the present case, by virtue of maintenance application Ex. PW□/1 and written statement Ex. PW□/2 and compromise arrived at (Ex. PW□/3) it is crystal clear that petitioner is legally wedded wife of the deceased Prem Singh and Anil is son of the deceased Prem Singh . It is the version of the petitioner that no divorce took place between petitioner and the objector. Suggestion was put on behalf of the objector to the petitioner and petitioner has denied that no Panchayat was held during her litigation with Prem Singh and petitioner also denied that as per Customs, Cast and Creed the marriages between the parties and divorce among them are held in the Panchayat and the decision of the Panchayat is acceptable in their Biradari and nobody challenges the same but in her affidavit objector Kamlesh Kumari has not stated that any Panchayat was held and as per customs and usages marriage between the parties and divorce among are held in the Panchayat and the the decision of

the Panchayat is acceptable in their Biradari and nobody challenges the same. 18 Therefore, in view of above discussion, this court is of the opinion that Objector Kamlesh Kumari has failed to establish that she is legally wedded wife of the deceased and she also failed to establish that any divorce took place between petitioner and the deceased. Therefore, I am of the opinion that petitioner is the legally wedded wife of the deceased Prem Singh but objector Kamlesh Kumari has filed the documents on record i.e. Copies of birth certificate and copies of School Leaving Certificates in which children namely Seema, Meenakshi and Mukesh have been shown as daughters and son of deceased Prem Singh.

19 Objector Kamlesh Kumari has established the right of her children from the documents exhibited in her statement that they are born from the wedlock of the deceased with the objector. However, since objector Kamlesh Kumari has not been able to prove her valid marriage with the deceased, therefore, Seema, Meenakshi and Mukesh can at best be termed as illegitimate children.

20 What is the right of illegitimate children is clearly defined in Section 16 of Hindu Marriage Act. Law is well settled that even the illegitimate children are entitled to succession in the properties of the deceased parents.

21 "Sec 16. Legitimacy of children of void and voidable marriages. (1) Notwithstanding that a marriage is null and void under Section 11, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976 (68 of 1976), and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not the marriage is held to be void otherwise than on a petition under this Act.

(2) Where a decree of nullity is granted in respect of a voidable marriage under Section 12, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties to the marriage if at the date of the decree it had been dissolved instead of being annulled, shall be deemed to be their legitimate child notwithstanding the decree of nullity. Nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled by a decree of nullity under Section 12, any rights in or to property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents."

This legal position has been beautifully described by Hon'ble Supreme Court in the case of Smt. Parayankandiyal Eravath Kanapravan Kalliani Amma and others, Appellants Vs. K. Devi and others, Respondents AIR 1996 SUPREME COURT 1963=1996 AIR SCW 2337 wherein it was held, (in para 76) The words 'notwithstanding that a marriage is null and void under Section 11' employed in Section 16 (1) indicate undoubtedly the following : □

(a) Section 16 (1) stands delinked from Section 11.

(b) Provisions of Section 16 (1) which intended to confer legitimacy on children born of void marriages will operate with full vigour in spite of section 11 which nullifies only those marriages which are held after the enforcement of the Act and in the performance of which Section 5 is contravened.

(c) Benefit of legitimacy has been conferred upon the children born either before or after the date on which Section 16(1) was amended.

(d) Mischief or the vice which was the basis of unconstitutionality of unamended Section 16 has been effectively removed by amendment.

(e) Section 16 (1) now stands on its own strength and operates independently of other Sections with the result that it is constitutionally valid as it does not discriminate between illegitimate children similarly circumstanced and classifies them as one group for conferment of legitimacy.

Section 16, in its present form, is, therefore, not ultra vires the Constitution.' (in para 77 it was held) 'Section 16 contains a legal fiction. It is by a rule of fictio juris that the Legislature has provided that children, though illegitimate, shall, nevertheless, be treated as legitimate notwithstanding that the marriage was void or voidable'.

(in para 79 it was held) 'In view of the legal fiction contained in Section 16, the illegitimate children, for all practical purposes, including succession to the properties of their parents, have to be treated as legitimate. They can not, however, succeed to the properties of any other relation on the basis of this rule, which in its operation, is limited to the properties of the parents.' 22 Section 8 & 9 of Hindu Succession Act provides that children of deceased (which would include illegitimate children) are class legal heir and they are entitled to succession to the exclusion of others.

23 As I have already held above that objector has not been able to prove herself to be the legally wedded wife of the deceased in the eyes of law, therefore, there is no question of the objector succeeding to the estate of the deceased. The Judgment cited by the Id. Counsel for the respondent is not applicable to the facts and circumstances of the present case as in the cited case first wife had deserted the deceased but in the present case petitioner was residing separately due to compelling circumstances and deceased agreed to pay maintenance amount to the petitioner Sona Devi. 24 Therefore, in view of the above, this court is of the opinion that there is no impediment for grant of Succession Certificate in favour of petitioners namely Smt. Sona Devi @ Son Wati and also in favour of respondents namely Seema, Meenakshi and Mukesh qua the debts and securities of the deceased Prem Singh. I accordingly direct that a Succession Certificate be issued in favour of the petitioners namely Smt. Sona Devi @ Son Wati and also in favour of respondents namely Seema, Meenakshi and Mukesh qua the debts and securities of the deceased Prem Singh in the following ratio : □ Petitioner Smt. Sona Devi @ Son Wati Will take 2/5th share in the debts and securities of the deceased Prem Singh.

Respondents namely Seema, Meenakshi
and Mukesh

Will take 1/5th share each
in the debts and securities

of the deceased Prem
Singh.

in terms of Ex. CR□, on filing of requisite proportionate court fee and on furnishing an Indemnity Bond with one surety within 15 days.

As far as, family pension is concerned, only legally wedded wife is entitled for family pension i.e. only petitioner Smt. Sona Devi @ Sonwati is entitled for family pension as per Family Pension Rules.

No further orders are required to be passed in the matter. File be consigned to Record Room.

Announced in the open court
on 28.07.2011

(SANJEEV KUMAR SINGH)
Administrative Civil Judge (Central)
Delhi

28.07.2011

Pr: None.

Vide separate judgment announced in the open court today, Succession Certificate is ordered to be issued in favour of petitioners namely Smt. Sona Devi @ Son Wati and also in favour of respondents namely Neetu, Deepak, Kamal and Barkha qua the debts and securities of the deceased Shri Prem Singh. I accordingly direct that a Succession Certificate be issued in favour of the petitioners namely Smt. Sona Devi @ Son Wati and also in favour of respondents namely Neetu, Deepak, Kamal and Barkha qua the debts and securities of the deceased Shri Prem Singh in the following ratio :□
Petitioner Smt. Sona Devi @ Son Wati Will take 2/5th share in the debts and securities of the deceased Prem Singh.

Respondents namely Seema, Meenakshi
and Mukesh

Will take 1/5th share each
in the debts and securities
of the deceased Prem
Singh.

in terms of Ex. CR□, on filing of requisite proportionate court fee and on furnishing an Indemnity Bond with one surety within 15 days.

As far as, family pension is concerned, only legally wedded wife is entitled for family pension i.e. only petitioner Smt. Sona Devi @ Sonwati is entitled for family pension as per Family Pension Rules.

No further orders are required to be passed in the matter. File be consigned to Record Room.

(Sanjeev Kumar Singh) ACJ (Central)/Delhi 28.07.2011